



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 4158: criminal justice; 2026-2027

LIVINGSTON FLOOR AMENDMENT

1. Renames the *Peace Officer Equipment and Training Fund* as the *Law Enforcement Equipment Fund* (Fund).
2. Transfers administrative authority over the Fund from the State Treasurer to the Arizona Criminal Justice Commission.
3. Instructs the Administrative Office of the Courts to submit a report to specified members of the executive and legislative branches on the enforcement and collection of unpaid court restitution, fines, fees, surcharges and assessments.

LIVINGSTON FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 4158
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 12-114, Arizona Revised Statutes, is amended
3 to read:

4 12-114. Surcharge on court authorized diversion programs for
5 traffic offenses; deposit

6 A. If a court authorizes individuals charged with civil or criminal
7 traffic offenses to attend a court authorized diversion program, including
8 a defensive driving school program, [++] [THE COURT] shall require the
9 assessment of a [nine-dollar] [\$9] surcharge on the fees charged by the
10 court authorized diversion programs. The surcharge applies to every
11 individual who attends a court authorized diversion program, including an
12 individual who holds a commercial driver license.

13 B. A court or a court authorized diversion program shall collect
14 the [nine-dollar] [\$9] surcharge and remit the surcharge to the supreme
15 court which shall deposit, pursuant to sections 35-146 and 35-147, [five
16 dollars] [\$5] of the surcharge in the judicial collection enhancement fund
17 and the remaining [four-dollars] [\$4] in the [peace officer training] [LAW
18 ENFORCEMENT] equipment fund established by section 41-1731.>>

19 <<Sec. 2. Section 12-116.10, Arizona Revised Statutes, is amended
20 to read:

21 12-116.10. Assessment; law enforcement equipment fund

22 A. In addition to any other penalty assessment provided by law, a
23 penalty assessment shall be levied in an amount of [four-dollars] [\$4] on
24 every civil penalty imposed and collected for a civil traffic violation
25 and fine, penalty or forfeiture for a criminal violation of the motor
26 vehicle statutes or for any local ordinance relating to the stopping,
27 standing or operation of a vehicle.

1 B. The court shall transmit the assessments collected pursuant to
2 this section and a remittance report of the fines, civil penalties and
3 forfeitures collected pursuant to this section to the county treasurer,
4 except that municipal courts shall transmit the assessments and the
5 remittance report of the fines, civil penalties and forfeitures to the
6 city or town treasurer.

7 C. The city, town or county treasurer shall transmit the assessment
8 and the remittance report to the state treasurer. The state treasurer
9 shall deposit the assessment in the ~~[peace officer training]~~ [LAW
10 ENFORCEMENT] equipment fund established by section 41-1731.

11 D. The court may mitigate all or part of the assessment in the same
12 manner and subject to the same limitations in the mitigation of a fine in
13 section 13-825, subsection B.>>

14 <<Sec. 3. Section 13-810, Arizona Revised Statutes, is amended to
15 read:

16 13-810. Consequences of nonpayment of fines, surcharges,
17 fees, assessments, restitution or incarceration
18 costs; report

19 A. In addition to any other remedy provided by law, including a
20 writ of execution or other civil enforcement, if a defendant who is
21 sentenced to pay a fine, a surcharge, a fee, an assessment or
22 incarceration costs defaults in the payment of the fine, surcharge, fee,
23 assessment or incarceration costs or of any installment as ordered, the
24 court, on motion of the prosecuting attorney or on its own motion, shall
25 require the defendant to show cause why the defendant's default should not
26 be treated as contempt and may issue a summons or a warrant of arrest for
27 the defendant's appearance.

28 B. In addition to any other remedy provided by law, including a
29 writ of execution or other civil enforcement, if a defendant who is
30 ordered to pay restitution defaults in the payment of the restitution or
31 of any installment as ordered, the court, on motion of the prosecuting
32 attorney, on petition of any person entitled to restitution pursuant to a
33 court order or on its own motion, shall require the defendant to show
34 cause why the defendant's default should not be treated as contempt and
35 may issue a summons or a warrant of arrest for the defendant's appearance.

36 C. In addition to any other remedy provided by law, including a
37 writ of execution or other civil enforcement, the court, on receipt of a
38 petition and issuance of an order to show cause, has jurisdiction to
39 preserve rights over all restitution liens entered pursuant to section
40 13-806, subsection B[;] and perfected pursuant to section 13-806,
41 subsection E.

42 D. At any hearing on the order to show cause the court, the
43 prosecuting attorney or a person entitled to restitution may examine the
44 defendant under oath concerning the defendant's financial condition,
45 employment and assets or on any other matter relating to the defendant's
46 ability to pay restitution.

1 E. If the court finds that the defendant has wilfully failed to pay
2 a fine, a surcharge, a fee, an assessment, restitution or incarceration
3 costs or finds that the defendant has intentionally refused to make a good
4 faith effort to obtain the monies required for the payment, the court
5 shall find that the default constitutes contempt and may do any of the
6 following:

7 1. Order the defendant incarcerated in the county jail until the
8 fine, surcharge, fee, assessment, restitution or incarceration costs, or a
9 specified part of the fine, surcharge, fee, assessment, restitution or
10 incarceration costs, is paid.

11 2. Refer the defendant for revocation of probation, parole or
12 community supervision as authorized by law.

13 3. Enter an order pursuant to section 13-812. The levy or
14 execution for the collection of a fine, a surcharge, a fee, an assessment,
15 restitution or incarceration costs does not discharge a defendant who is
16 incarcerated for nonpayment of the fine, surcharge, fee, assessment,
17 restitution or incarceration costs until the amount of the fine,
18 surcharge, fee, assessment, restitution or incarceration costs is
19 collected.

20 4. Order the defendant to perform community restitution.

21 F. If the court finds that the default is not wilful and that the
22 defendant cannot pay despite sufficient good faith efforts to obtain the
23 monies, the court may take any lawful action including:

24 1. Modify the manner in which the restitution, fine, surcharge,
25 fee, assessment or incarceration costs are to be paid.

26 2. Enter any reasonable order that would assure compliance with the
27 order to pay.

28 3. Enter an order pursuant to section 13-812. The levy or
29 execution for the collection of a fine, a surcharge, a fee, an assessment,
30 restitution or incarceration costs does not discharge a defendant
31 incarcerated for nonpayment of the fine, surcharge, fee, assessment,
32 restitution or incarceration costs until the amount of the fine,
33 surcharge, fee, assessment, restitution or incarceration costs is
34 collected.

35 G. If a fine, a surcharge, a fee, an assessment, restitution or
36 incarceration costs are imposed on an enterprise it is the duty of the
37 person or persons authorized to make disbursement from the assets of the
38 enterprise to pay them from those assets, and their failure to do so shall
39 be held a contempt unless they make the showing required in subsection A
40 or B of this section.

41 H. If a defendant is sentenced to pay a fine, a surcharge, a fee,
42 an assessment, restitution or incarceration costs, the clerk of the
43 sentencing court, on request, shall make the defendant's payment history
44 available to the prosecutor, victim, victim's attorney, probation
45 department and court without cost.

46 I. ON OR BEFORE DECEMBER 31, 2026 AND EACH YEAR THEREAFTER, THE
47 ADMINISTRATIVE OFFICE OF THE COURTS SHALL SUBMIT A REPORT TO THE GOVERNOR.

1 THE PRESIDENT OF THE SENATE, THE SPEAKER OF THE HOUSE OF REPRESENTATIVES,
2 THE DIRECTOR OF THE JOINT LEGISLATIVE BUDGET COMMITTEE AND THE DIRECTOR OF
3 THE GOVERNOR'S OFFICE OF STRATEGIC PLANNING AND BUDGETING AND SHALL
4 PROVIDE A COPY OF THE REPORT TO THE SECRETARY OF STATE ON THE ENFORCEMENT
5 AND COLLECTION OF RESTITUTION, FINES, FEES, SURCHARGES AND ASSESSMENTS
6 UNDER THIS SECTION. THE REPORT MUST INCLUDE, FOR EACH CATEGORY OF MONETARY
7 OBLIGATION, ALL OF THE FOLLOWING:

8 1. THE AMOUNTS ORDERED AND COLLECTED.

9 2. COLLECTION RATES.

10 3. INSTANCES IN WHICH A PERSON WAS INCARCERATED DUE TO NONPAYMENT,
11 INCLUDING PURSUANT TO A BENCH WARRANT OR A FINDING OF CONTEMPT, AND THE
12 TOTAL DAYS OF INCARCERATION SERVED.

13 4. ENFORCEMENT AND COLLECTION COSTS.

14 5. NET COLLECTIONS.]>>

15 Sec. 4. Section 31-281, Arizona Revised Statutes, is amended to
16 read:

17 31-281. Transition program; report; definition

18 A. The department shall establish a transition program that
19 provides eligible inmates with transition services in the community for ~~up~~
20 ~~to~~ **NOT MORE THAN** ninety days. The department shall administer the
21 transition program and contract with private or nonprofit entities to
22 provide eligible inmates with transition services and shall procure
23 transition services pursuant to title 41, chapter 23.

24 B. The director shall adopt rules to implement this article. The
25 rules shall include:

26 1. Eligibility criteria for receiving a contracted entity's
27 transition services. To be eligible, at a minimum, an inmate shall:

28 (a) Not have been convicted of a sexual offense pursuant to title
29 13, chapter 14 or a violation of title 13, chapter 17.

30 (b) Not have been convicted of a violent crime as defined in
31 section 13-901.03, unless the inmate was convicted of assault, aggravated
32 assault or robbery.

33 (c) Not have any felony detainers.

34 (d) Agree in writing to provide specific information after the
35 inmate is released. The department shall use the information to prepare
36 the report prescribed by subsection D, paragraph 3 of this section.

37 (e) Have made satisfactory progress by complying with all
38 programming on the inmate's individualized corrections plan as determined
39 by the department.

40 (f) Be classified by the department as minimum or medium custody as
41 determined by an objective risk assessment.

42 (g) Not have been found in violation of any major violent rule
43 during the inmate's current period of incarceration or in violation of any
44 other major rule within the previous six months. For the purposes of this
45 subdivision, an accumulation of minor rule violations does not equal a
46 major rule violation.

1 2. A requirement that each contracted entity train mentors or
2 certify that mentors are trained.

3 3. A requirement that the services offered to an inmate include
4 psychoeducational counseling and case management services as determined by
5 the department. The counseling and services may include substance abuse
6 treatment, anger management, cognitive behavioral therapy, parenting
7 skills and family reunification training, further education and job
8 placement.

9 4. A requirement that an inmate may be released pursuant to this
10 article only after the victim has been provided notice and an opportunity
11 to be heard. The department shall provide notice to a victim who has
12 provided a current address or other contact information. The notice shall
13 inform the victim of the opportunity to be heard on the early release.
14 Any objection to the inmate's early release must be made within twenty
15 days after the department has mailed the notice to the victim.

16 C. In awarding contracts under this section the department shall
17 comply with section 41-3751.

18 D. The department shall:

19 1. Conduct an annual study to determine the recidivism rate of
20 inmates who receive a contracted entity's services pursuant to this
21 article. The study shall include the recidivism rate of inmates who have
22 been released from incarceration for a minimum of three years after
23 release.

24 2. Evaluate the inmate and provide the information to the
25 contracted entity.

26 3. Submit a written report to the governor, the president of the
27 senate and the speaker of the house of representatives on or before
28 ~~July 31~~ **NOVEMBER 30** of each year and provide a copy of this report to the
29 secretary of state **AND THE DIRECTOR OF THE JOINT LEGISLATIVE BUDGET**
30 **COMMITTEE**. The report may be submitted electronically. The report shall
31 contain the following information:

32 (a) The recidivism rate of inmates who receive services pursuant to
33 this article, including the recidivism rate of inmates who have been
34 released from incarceration for a minimum of three years after release.

35 (b) The number of inmates who received services pursuant to this
36 article.

37 (c) The number of inmates who were not provided services pursuant
38 to this article and who were on a list waiting to receive services.

39 (d) The types of services provided.

40 (e) The number of inmates who received each type of service
41 provided.

42 (f) **THE COST REDUCTIONS TO THE DEPARTMENT THAT ARE DIRECTED TO THE**
43 **TRANSITION PROGRAM PURSUANT TO THIS ARTICLE. FOR THE PURPOSES OF THIS**
44 **PARAGRAPH, THE REDUCTION RATE MAY NOT BE LESS THAN \$17 PER INMATE PER DAY.**

45 (g) **THE NUMBER OF PARTICIPANTS WHO DID NOT RECEIVE AN EARLY RELEASE**
46 **UNDER THE TRANSITION PROGRAM.**

1 4. Provide information about the transition program to all inmates
2 who are not serving a life sentence on admission to prison and to any
3 inmate who is potentially eligible for the transition program six months
4 before the inmate's eligibility date. The information must include all of
5 the admission requirements to the transition program, including the
6 disqualifying factors under this section.

7 E. Notwithstanding subsection B, paragraph 1 of this section, if an
8 inmate agrees to comply with any condition that is established and
9 required by section 41-1604.07, subsection F, has been convicted of the
10 possession or use of marijuana pursuant to section 13-3405, subsection A,
11 paragraph 1, possession or use of a dangerous drug pursuant to section
12 13-3407, subsection A, paragraph 1, possession or use of a narcotic drug
13 pursuant to section 13-3408, subsection A, paragraph 1 or possession or
14 use of drug paraphernalia pursuant to section 13-3415, subsection A and is
15 not concurrently serving another sentence for an offense that is not
16 listed in this subsection, the inmate is eligible for and shall be
17 released to enter the transition program. The director may not exclude an
18 inmate who is eligible for the transition program pursuant to this
19 subsection because the inmate does not have a place to reside before being
20 released, except that the director shall exclude an inmate who has any of
21 the following:

22 1. Previously been convicted of a violent crime as defined in
23 section 13-901.03 or an offense listed in title 13, chapter 14 or 35.1.

24 2. A felony detainer.

25 3. Been found to be in violation of a major violent rule during the
26 inmate's current period of incarceration or to be in violation of any
27 other major rule within the previous six months. For the purposes of this
28 paragraph, an accumulation of minor rule violations does not equal a major
29 rule violation.

30 4. Previously been released pursuant to this section and violated a
31 term of the inmate's release.

32 5. Failed to achieve functional literacy as required by section
33 41-1604.07, subsection F, unless the inmate is enrolled in a program that
34 prepares the inmate to achieve functional literacy.

35 6. Been classified by the department as close or maximum custody as
36 determined by a current and objective risk assessment.

37 7. Refused enrollment in or been removed for poor behavior from a
38 major self-improvement program within the previous eighteen months unless
39 the inmate has subsequently enrolled in and completed the major
40 self-improvement program.

41 F. For the purposes of this section, "recidivism" means
42 reincarceration in the department for any reason.

43 Sec. 5. Section 31-284, Arizona Revised Statutes, is amended to
44 read:

45 31-284. Transition program fund

46 The transition program fund is established consisting of ~~the~~ monies
47 collected pursuant to section 31-254, subsection D, paragraph 3 and

1 subsection E, paragraph 3 and section 31-285, ~~subsection C~~. The
2 department shall administer the fund to pay for any costs related to the
3 administration of the transition program and for transition program
4 services. Monies in the fund are subject to legislative appropriation and
5 are exempt from the provisions of section 35-190 relating to lapsing of
6 appropriations.

7 Sec. 6. Section 31-285, Arizona Revised Statutes, is amended to
8 read:

9 31-285. Transition program release; report

10 A. An inmate who enters a transition program pursuant to this
11 article shall be released from confinement three months earlier than the
12 inmate's earliest release date based on the inmate's risk and need and
13 rules adopted pursuant to section 31-281. An inmate who the director
14 determines has participated in the program but who is not low risk shall
15 not be released from confinement earlier than the inmate's earliest
16 release date.

17 ~~B. On or before September 30 of each year, the department shall~~
18 ~~prepare a report that details the cost reductions to the department that~~
19 ~~are directed to the transition program pursuant to this article and the~~
20 ~~number of participants who did not receive an early release under the~~
21 ~~transition program. The reduction rate shall equal at least seventeen~~
22 ~~dollars per inmate per day. The department shall submit a copy of its~~
23 ~~report to the governor, the president of the senate and the speaker of the~~
24 ~~house of representatives and shall provide a copy of this report to the~~
25 ~~director of the joint legislative budget committee and the secretary of~~
26 ~~state.~~

27 ~~C.~~ B. The state treasurer shall deposit any cost reductions that
28 are identified pursuant to ~~subsection B of this~~ section 31-281, SUBSECTION
29 D, PARAGRAPH 3, SUBDIVISION (f) in the transition program fund established
30 by section 31-284 for the purpose of providing transitional services.

31 Sec. 7. Section 41-710.03, Arizona Revised Statutes, is amended to
32 read:

33 41-710.03. Erroneous convictions fund

34 A. The erroneous convictions fund is established consisting of
35 monies appropriated to the fund by the legislature. The department of
36 administration shall administer the fund. Monies in the fund are
37 continuously appropriated and are exempt from the provisions of section
38 35-190 relating to lapsing of appropriations.

39 B. The department of administration shall use the monies deposited
40 in the erroneous convictions fund to fund claims brought pursuant to title
41 13, chapter 38, article 36.

42 C. ANY STATE AGENCY, BOARD, COMMISSION OR DEPARTMENT MAY NOT USE
43 MONIES FROM ANY FUND OR SOURCE OTHER THAN THE ERRONEOUS CONVICTIONS FUND
44 TO PAY ANY REIMBURSEMENT OR COMPENSATION THAT IS AWARDED PURSUANT TO TITLE
45 13, CHAPTER 38, ARTICLE 36. THIS STATE IS NOT LIABLE FOR ANY AMOUNT TO
46 PAY ANY REIMBURSEMENT OR COMPENSATION AWARDED PURSUANT TO TITLE 13,

1 CHAPTER 38, ARTICLE 36 IN EXCESS OF THE MONIES AVAILABLE IN THE ERRONEOUS
2 CONVICTIONS FUND.

3 Sec. 8. Heading change

4 The article heading of title 41, chapter 9, article 1, Arizona
5 Revised Statutes, is changed from "CIVIL RIGHTS DIVISION AND CIVIL RIGHTS
6 ADVISORY BOARD" to "CIVIL RIGHTS DIVISION".

7 Sec. 9. Repeal

8 Section 41-1401, Arizona Revised Statutes, is repealed.

9 Sec. 10. Title 41, chapter 9, article 1, Arizona Revised Statutes,
10 is amended by adding a new section 41-1401, to read:

11 41-1401. Civil rights division; definition

12 A. THE CIVIL RIGHTS DIVISION WITHIN THE DEPARTMENT OF LAW IS
13 ESTABLISHED.

14 B. FOR THE PURPOSES OF THIS CHAPTER, "DIVISION" MEANS THE CIVIL
15 RIGHTS DIVISION WITHIN THE DEPARTMENT OF LAW.

16 Sec. 11. Section 41-1641, Arizona Revised Statutes, is amended to
17 read:

18 41-1641. Corrections fund; uses; prior approval; exemption;
19 transfer

20 A. The corrections fund is established and consists of monies
21 received from the distribution provided pursuant to section 42-3104. The
22 state department of corrections shall administer the fund. Monies in the
23 fund are subject to legislative appropriation.

24 B. Monies in the corrections fund may be expended by:

25 1. The director of the department of administration for major
26 maintenance, construction, lease, purchase, renovation or conversion of
27 corrections or state operated juvenile facilities subject to the prior
28 approval of the joint committee on capital review and the legislature.

29 2. The director of the state department of corrections for costs
30 incurred in the minor maintenance and the operations of corrections
31 facilities subject to the prior approval of the legislature.

32 3. The director of the department of juvenile corrections for costs
33 incurred in the minor maintenance and the operations of state operated
34 juvenile facilities subject to the prior approval of the legislature.

35 C. Notwithstanding any law to the contrary and except as provided
36 in subsection B of this section:

37 1. The director of the state department of corrections shall enter
38 into an agreement with the director of the department of administration
39 for the expenditure of monies for the maintenance of corrections
40 facilities.

41 2. The director of the department of juvenile corrections shall
42 enter into an agreement with the director of the department of
43 administration for the expenditure of monies for the maintenance of state
44 operated juvenile facilities.

45 D. Monies in the fund are exempt from the provisions of section
46 35-190 relating to lapsing of appropriations.

1 E. The director of the state department of corrections shall
2 transfer ~~two million five hundred thousand dollars~~ \$12,500,000 from the
3 corrections fund annually to the department of corrections building
4 renewal fund established by section 41-797.

5 <<Sec. 12. Section 41-1731, Arizona Revised Statutes, is amended to
6 read:

7 41-1731. Law enforcement equipment fund; exemptions

8 A. The ~~[peace officer training]~~ [LAW ENFORCEMENT] equipment fund is
9 established consisting of monies deposited pursuant to sections 12-114 and
10 12-116.10. The ~~[state treasurer]~~ [ARIZONA CRIMINAL JUSTICE COMMISSION]
11 shall administer the fund. Monies in the fund may be used only for ~~[peace~~
12 ~~officer]~~ [LAW ENFORCEMENT] equipment [AND ADMINISTRATIVE COSTS].

13 B. The state treasurer shall invest and divest monies in the fund
14 as provided by section 35-313, and monies earned from investment shall be
15 credited to the fund.

16 C. Monies in the fund:

17 1. Do not revert to the state general fund at the end of the fiscal
18 year.

19 2. Are exempt from the provisions of section 35-190 relating to
20 lapsing of appropriations.

21 3. Are subject to legislative appropriation.>>

22 <<Sec. 13. Section 41-1732, Arizona Revised Statutes, is amended to
23 read:

24 41-1732. Law enforcement equipment fund advisory commission;
25 membership; duties; recommendations

26 A. The ~~[peace officer training]~~ [LAW ENFORCEMENT] equipment fund
27 advisory commission is established consisting of the following members:

28 1. One member of the senate who is appointed by the president of
29 the senate.

30 2. One member of the house of representatives who is appointed by
31 the speaker of the house of representatives.

32 3. The director of the department of public safety or the
33 director's designee.

34 4. One member who is appointed by the Arizona association of chiefs
35 of police.

36 5. One member who is appointed by the Arizona sheriffs association.

37 6. One member who is appointed by the director of the Arizona state
38 troopers association.

39 7. One member who is appointed by the director of the Arizona
40 police association.

41 B. Members who are appointed pursuant to subsection A, paragraphs
42 4, 5, 6 and 7 of this section serve three-year terms. The members of the
43 commission shall annually elect a chairperson and vice chairperson from
44 among the voting members. The [ADVISORY] commission shall meet on the
45 call of the chairperson but at least once each fiscal year. No actions
46 may be taken without a quorum present. Members who are appointed pursuant

1 to subsection A, paragraphs 1 and 2 of this section shall serve as
2 advisory nonvoting members of the [ADVISORY] commission.

3 C. Members are not eligible to receive compensation but members who
4 are appointed pursuant to subsection A, paragraphs 4, 5, 6 and 7 of this
5 section are eligible for reimbursement of expenses pursuant to title 38,
6 chapter 4, article 2.

7 D. The advisory commission may use the facilities and the staff of
8 the Arizona criminal justice commission.

9 E. The advisory commission may enter into interagency agreements
10 with the Arizona criminal justice commission and other agencies for
11 advisory commission business.

12 F. On or before December 1 of each year, the [ADVISORY] commission
13 shall submit written recommendations to the president of the senate, the
14 speaker of the house of representatives, the governor and the chairpersons
15 of the senate commerce and public safety committee and the house of
16 representatives judiciary and public safety committee, or their successor
17 committees, on the allocation each fiscal year of monies in the [~~peace~~
18 ~~officer training~~] [LAW ENFORCEMENT] equipment fund established by section
19 41-1731. The [ADVISORY] commission shall provide a copy of the
20 recommendations to the secretary of state.>>

21 Sec. 14. Repeal

22 Section 41-3026.11, Arizona Revised Statutes, is repealed.

23 Sec. 15. Laws 2022, chapter 311, section 10, as amended by Laws
24 2024, chapter 213, section 7, is amended to read:

25 Sec. 10. Effective date

26 Section 41-1712, Arizona Revised Statutes, as amended by Laws 2022,
27 chapter 311, section 3, and title 41, chapter 12, article 4.1, Arizona
28 Revised Statutes, as added by Laws 2022, chapter 311, section 5, are
29 effective from and after June 30, ~~2027~~ 2028.

30 Sec. 16. Retroactivity

31 Section 41-710.03, Arizona Revised Statutes, as amended by this act,
32 applies retroactively to from and after December 31, 2025.

33 Enroll and engross to conform

34 Amend title to conform

DAVID LIVINGSTON

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